SPECIAL BENCH **ITEM NO. 1**

IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(through web-based video conferencing platform)

CP(CAA)No.1/ALD/2023
(2nd Motion)
Under Section 230-232 of the Companies Act, 2013

Dated: 11.01.2023

In the matter of Scheme of Arrangement between:

OBEETEE TEXTILES PRIVATE LIMITED
(CIN: U18101UP1995PTC018737)
……. **Applicant Transferor Company / Demerged Company**

WITH

OBEETEE PRIVATE LIMITED
(CIN: U17226UP1932PTC000475)
……. **Applicant Transferee Company / Resulting Company**

Coram: **HON'BLE MR. PRAVEEN GUPTA, MEMBER (JUDICIAL)**
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

Present through video conferencing:

For the Applicant Companies: Mr. S K Gupta, PCS
For OL/RD (NR) : Mr. Ajit Kumar Singh, AOL
FOR RoC : Mr. Shivendra Bahadur, CGSC.

Per: Mr. Praveen Gupta, Member (Judicial)

ORDER

1. This is a joint Second Motion company petition filed by the Applicant Companies, namely, **Obeetee Textiles Private Limited (**Applicant Transferor Company/ Demerged Company) and **Obeetee Private Limited** (Applicant Transferee Company /Resulting Company) in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

-Sd- ***-Sd-***

2. The petitioner companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The First Motion application seeking directions for Dispensing with the meetings of the Equity Shareholders, Preference Shareholders and Secured Creditors of all the Applicant Companies were filed before this Tribunal. It was further prayed to convene separate meetings of the Unsecured Creditors of both the Applicant Companies vide Company Application No. CA (CAA) No. 16/ALD of 2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 01.11.2022. In the order dated 01.11.2022, the meetings of Equity Shareholders, Preference Shareholders and Secured Creditors of all the Applicant Companies were dispensed with for the reasons mentioned in the aforesaid order. Additionally, this Tribunal directed holding of meetings of Unsecured Creditors of Applicant Companies separately on 17 December at 11:30 a.m. and 2:00 p.m. respectively at the Registered Office of the Company at Bisunderpur, Civil Lines, Mirzapur – 231001 (U.P.). The separate meetings of Unsecured Creditors of Applicant companies was duly convened wherein the scheme of arrangement was considered and approved without any modification.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 01.11.2022.

5. Notices are accordingly issued in the present petition by the Petitioner Companies, within two weeks, on the following Authorities namely, (a) Central Government through Regional Director, New Delhi; (b) Registrar of Companies, Uttar Pradesh (Kanpur) (c) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with a copy of this petition by speed post immediately.

6. In addition to the above notice, the notice of hearing will be advertised in "Times of India" in English language, and "Amar Ujala" in Hindi language, having wide circulation in Mirzapur area, not less than 10 days before the next date fixed for hearing.

-Sd- ***-Sd-***

7. The Ld. Counsel representing the petitioner states that there are no others Sectoral Regulators except for the aforesaid concerned authorities namely Regional Director, RoC and Income Tax Authorities and to that effect he undertakes to file an affidavit. The said affidavit would be filed within a period of two weeks.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above.

9. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notices have been given be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

10. The petitioner companies shall also file an affidavit stating about the objections, if any, received from public pursuant to publication of notice of hearing in the newspapers.

11. The next date of hearing of the petition shall be on **03.03.2023** for further consideration.

12. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

-Sd-
(Subrata Kumar Dash)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

11th January, 2023

Aditi Kharbanda
(LRA)